



Notification Waiver Determination

Online Education Services – South Australian Institute of Business and Technology

Acquisition	Online Education Services Pty Ltd (OES) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in South Australian Institute of Business and Technology Pty Ltd (SAIBT), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 June 2026

Parties to the Acquisition	The acquirer, OES, provides end-to-end online education delivery services to higher education providers such as universities. This includes delivering online courses on behalf of higher education providers. OES does not currently possess the regulatory approvals necessary to provide these courses directly to students (other than indirectly through Swinburne University, which owns 20% of OES – with the remaining 80% owned by Seek Growth Nominees Pty Ltd). The target, SAIBT, is part of the Navitas Group. SAIBT has historically offered face-to-face diploma qualifications in Adelaide intended to act as pathway qualifications to bachelor degrees offered by the University of South Australia. Following the merger of the University of South Australia and the University of Adelaide to form Adelaide University, SAIBT commenced transitioning its students to Eynesbury College, another entity in the Navitas Group. SAIBT has ceased enrolling new students and will have no students at completion of the Acquisition. As such, on completion, OES will acquire SAIBT as a dormant 'shell' with regulatory approvals to operate higher education diploma qualifications.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the Acquisition will not increase concentration in the supply of diploma/pathway qualifications in Australia b. the Acquisition will facilitate new entry by OES into the supply of diploma/pathway qualifications in Australia

	c. there are alternative suppliers of diploma/pathway qualifications in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act